

****Police Report****

****Private Hospital Capio A/S Recommended for Fine****

****Date: 01-02-2024****

****Decision****

****Private Companies****

****Police Report****

****Supervision / Self-Management Case****

****Data Processor****

****Sensitive Information****

****Fundamental Principles****

The Data Protection Agency reports Capio A/S to the police for failing to supervise data processors. The private hospital is recommended for a fine of no less than 1,500,000 DKK.

The Data Protection Agency has conducted an investigation into GHP Gildhøj Privathospital ApS (now Capio A/S) supervision of data processors. In this context, the Data Protection Agency randomly selected three of the private hospital's data processors as subjects for the investigation.

The investigation of Capio A/S's supervision of the three data processors revealed that the private hospital had not supervised the data processors. The first supervision of each individual data processor was only conducted when the Data Protection Agency initiated its investigation of the private hospital.

On this basis, the Data Protection Agency has decided to report Capio A/S to the police for failing to act in accordance with the data protection legal principle of accountability. It is thus the Data Protection Agency's assessment that the private hospital has not been able to ensure and demonstrate that personal data is processed for lawful and fair purposes and in a manner that ensures adequate security for the relevant personal data. This applies even though the private hospital requested another party (a data processor) to process the information on its behalf.

****Why Police Report?****

The Data Protection Agency always conducts a specific assessment of the severity of the case pursuant to Article 83, paragraph 2 of the General Data Protection Regulation when evaluating which sanction is considered appropriate by the Agency.

In its assessment, the Data Protection Agency has emphasized, among other things, that there was no supervision of the data processors for several years. Furthermore, the data processors handled information about a large number of registered individuals. The Agency also highlighted that the data processors processed special categories of personal data (sensitive information) and other protected personal data.

****Want to Know More?****

You can read the Data Protection Agency's guidance on supervision of data processors [here](#).